

25VECV01654 25VECV01654

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-07-30

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Case Number: 25VECV01654 Hearing Date: July 30, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Saman

Fakheri,

Plaintiff,

v.

General Motors LLC

Defendant.

Case Number Department

25VECV01654 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

For Attorney Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant request for attorneys' fees in the reduced sum of \$15,812.50; (2) Grant request for costs in the sum of \$927.28.

I.

BACKGROUND

On or about June 30, 2022, Plaintiff Saman Fakheri ("Plaintiff") purchased a 2022 Cadillac Escalade (the "Vehicle"). (Complaint ¶ 6.) The Vehicle was defective. (FAC ¶¶ 7-8.)

On March 24, 2025, Plaintiff filed a complaint against Defendants General Motors LLC ("Defendant") and Does 1 to 100, alleging causes of action for: (1) breach of implied warranty; (2) breach of express warranty; and (3) violation of the Song Beverly Consumer Warranty Act.

On June 8, 2026, Plaintiff filed a notice of settlement of entire case.

On June 25, 2026, Plaintiff filed a motion for attorney fees and expenses (the "Motion"). On July 17, 2026, Defendant filed an opposition. At 7:07 pm on July 24 (late), 2026, Plaintiff filed a reply that the court does not consider.

II.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended,

determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

“The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (“Robertson”) (2006) 144 Cal.App.4th 785, 817, original italics.) The “prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Id. at pp. 817-818.) “The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court.” (Id. at p. 822.)

“[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]” (Robertson, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method “requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Id. at p. 819.) However, a trial court is “not required to apply a multiplier.” (Id. at p. 822, original italics.)

III.

DISCUSSION

Plaintiff

moves for an order awarding Plaintiff attorneys’ fees and expenses in the sum of \$18,579.78. (Motion p. 10.) This reflects attorneys’ fees in the sum of \$15,352.50, an additional \$2,300.00 in attorneys’ fees for preparing the Motion, reviewing the opposition, preparing a reply, and appearing at the Motion’s hearing, and \$927.28 in costs. (Motion pp. 2, 10.)

Hourly

Rates:

Plaintiff's

counsel, Lior Sadgan, billed at the rate of \$575.00 per hour. (Sadgan Declaration ¶ 2.)

In

opposition, Defendant argues Plaintiff's counsel's hourly rate is excessive. (Opposition pp. 3-5.)

Plaintiff's

counsel has been practicing law since 2014. (Sadgan Declaration ¶ 3.) The court finds the requested hourly rate is reasonable. (See Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.])

Time

Billed:

Plaintiff's

counsel billed 26.70 hours on this matter, excluding time relating to the present Motion. (Sadgan Declaration Ex. B pdf p. 9.)

In

opposition, Defendant argues the court should reduce the fee award to exclude excessive and duplicative time. (Opposition pp. 5-7.)

The

court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a lack of efficiency in litigating the case and a lack of clarity in tasks performed." (See Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240 256 ["Further, counsel's billing entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed. This evidence supports the trial court's finding that plaintiff's counsel failed to act efficiently."]) Plaintiff's counsel is experienced in this area

of the law. Thus, the court will adjust the reflected time to reflect the court's understanding that the time billed should reflect Plaintiff's counsel's expertise.

Defendant
also requests the court eliminate fees requested for clerical tasks including time spent requesting service of process of the summons and complaint, emails relating to scheduling the surrender, and time billed for receipt of settlement, deposit, and wire transfer. (Opposition p. 7.)

The
court disagrees with Defendant that these tasks are purely clerical and declines to strike them.

Date

Task

Hours Requested

Adjusted Hours

Hourly Rate

03/24/25

Drafted and filed
Complaint, Summons, and Civil Case Cover Sheet

1.50

1.0

\$575.00

04/25/25

Email from OC
Erskine – review meet and confer letter

0.80

0.40

\$575.00

04/26/25

Review Defendant's
NOD

0.80

0.40

\$575.00

04/26/25

Review Protective
Order from OC – Erskine Law

1.1

0.50

\$575.00

07/11/25

Draft objection to
NOD

0.50

0.20

\$575.00

(Sadgan

Declaration Ex. B pdf pp. 7-9.)

The
adjustments above reflect a \$1,265.00 reduction in the requested fees.

The
court finds the reasonable number of hours expended on this matter, excluding
time spent relating to the present Motion, was 24.50 hours, at \$575.00 per
hour.

Plaintiff's
counsel also requests \$2,300.00 in fees relating to the present Motion. (Motion
p. 10.) This reflects 2.0 hours of fees to prepare the Motion and an
anticipated 2.0 hours of fees to review the opposition, prepare a reply, and
appear at the hearing. (Sadgan Declaration ¶ 7.) Plaintiff filed no reply.
Thus, fees relating to reviewing the opposition and preparing a reply are not
warranted. The court reduces the fees request relating to the Motion to
\$1,725.00, reflecting 2.0 hours of fees to prepare the Motion and 1.0 hour of
fees to appear at the hearing, at \$575.00 per hour.

IV. COSTS

Plaintiff requests
\$927.28 in costs. (Motion p. 10.)

In opposition,
Defendant does not oppose the request for costs.

Plaintiff filed no
memorandum of costs. But Plaintiff submits the Standardized SBA Release, which
provides: "[r]easonable attorneys' fees, costs, and expenses pursuant to
subdivision (d) of Section 1794 of the Civil Code shall be determined by the
court by way of a noticed motion. Defendant agrees Plaintiff is the prevailing
party for purposes of said fee motion." (Sadgan Declaration ¶ 8; Ex. A pdf p.
4.) The Standardized SBA Release is signed by Plaintiff, not Defendant. (Sadgan
Declaration Ex. A pdf p. 5.) But Defendant does not dispute that the submitted
document reflects the parties' agreement.

Thus, the court grants

Plaintiff's request for costs.

V.

CONCLUSION

For the foregoing reasons, Plaintiff's request for attorneys' fees is granted in the reduced sum of \$15,812.50 and Plaintiff's request for costs is granted in the sum of \$927.28, to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this order.

Dated: July 30, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court